

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 <u>1</u>	23CV42929	Aurora Zamarripa v. Victor Rodriguez Gonzalez	Plaintiff petitions this court to compel Defendant for a deposition. Plaintiff filed its request timely—however, Defendant never responded. In fact, it appears communication has been lost with Defendant and his counsel. No opposition was filed to Plaintiff’s petition. Plaintiff’s petition to compel Defendant to appear for a deposition is GRANTED.
9:00 <u>2</u>	24CV432377	Eric Peschke et.al. vs. Arthur Cook et. al.	Plaintiff petitions court for Defendant to produce documents. Plaintiff requested documents of stock sale transaction which Defendant responded was satisfied in a Court ordered protective order. This court deems plaintiff’s request as relevant; Plaintiff’s request for production of documents related to the stock sale transaction is GRANTED. Plaintiff also requests production of all documents related to the LLC and the lease. This court deems such a request as relevant. Plaintiffs request for production of all documents related to the LLC and the lease is GRANTED. Plaintiff petitions this court to order Defendant to produce documents RFP 10-13 related to Qantas Lane, LLC. This court finds this request to be relevant. The petition for Defendant to produce documents RFT 10-13 is GRANTED. Plaintiff’s request for Defendant to produce all documents regarding the property is overbroad and lacks sufficient particularity. Plaintiff’s petition to produce all documents is DENIED. Plaintiff’s petition to order Defendant to produce documents regarding his relationship with Rexel is relevant. Plaintiff’s petition for Defendant to produce documents related to Rexel is GRANTED. Monetary sanctions in the amount of \$10,100 requested by Plaintiff is GRANTED. The court requests oral argument as to why the production of these documents should necessitate the granting of a protective order.
9:00 <u>3</u>	24CV442901	Phoung Vu v. Santa Clara County	See below
9:00 4	24CV443183	Shanna Huynh v. Redis Labs, Inc. et.al.	Plaintiff petitions this court to compel Defendant Redis Labs to provide documents and supplemental responses. Plaintiff requested such documents and Defendant failed to respond. Defendant failed to object to Plaintiff’s petition. Plaintiff’s petition is GRANTED. Plaintiff’s request for sanctions in the amount of \$9,410 is GRANTED.
9:00 <u>5</u>	25CV461020	Helloha Coffee LLC et.al. vs The Clove Art Complex	Plaintiff moves this court to enforce settlement. Defendant admits that defendant could not pay back the terms of the settlement. Plaintiff’s motion is GRANTED. Court will address argument as to whether a financial plan can be agreed upon.
9:00 6-8	25CV477954	SIU Holdings Ltd. Et.al. vs Pouya Taaghol	See below
9:00 9	25CV478811	Stephen Stapley et.al. vs Louis Mariani, et.al.	See below

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Line 3

Calendar Line 3

Case Name: *Vu v. County of Santa Clara*

Case No.: 24CV442901

Defendant County of Santa Clara’s (“County”) request for judicial notice of the complaint, the proof of service of summons filed on July 17, 2024, the May 5, 2025 minute order of Hon. Pennypacker, the declaration of Long Do filed on July 9, 2025, the August 26, 2025 minute order of Hon. Pennypacker, and the August 1, 2024 notice of return without action is GRANTED. (Evid. Code §452, subds. (d), (h).)

County is correct that plaintiff Phuong Vu (“Plaintiff”) first attempted to present her claim on July 17, 2024 for an incident dated May 12, 2022. This is over a year beyond the six-month period to present her claim and thus, Plaintiff cannot demonstrate compliance with the Government Claims Act. (See Gov. Code § 911.2, subd. (a); see also *Last Frontier Healthcare Dist. v. Super. Ct. (Harper)* (2019) 33 Cal.App.5th 492, 497 (stating that “[n]o suit for damages may be maintained against a public entity unless a written claim has first been presented to it... [a] claim for personal injury must be presented ‘not later than six months after the accrual of the cause of action’”); see also *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990 (stating that “[c]laims for personal injury and property damage must be presented within six months after accrual... failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity”).) Plaintiff’s opposition neither addresses County’s argument, nor suggests how she might otherwise state a viable cause of action. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party “fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Arega v. Bay Area Rapid Transit*